All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at Civil Remote Hearings | Superior Court of California | County of Orange (occourts.org) before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at Civil Remote Hearings | Superior Court of California | County of Orange (occourts.org) The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at Civil Remote Hearings | Superior Court of California | County of Orange (occourts.org) Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5618 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

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#	Case Name	Tentative
6.	2022-1295621 Kowalski vs. BMW of North America, LLC	Notice of Withdrawal filed 06/24/2024.
7.	2023-1314344 Dahi vs. San Dimas Foothill Partners, LLC	Case stayed pending arbitration.
8.	2023-1356454 Clausen vs. Uber Technologies, Inc.	Defendant Uber Technologies, Inc.'s motion to compel arbitration of Plaintiff Allison Clausen's Complaint is granted. Defendant's request for judicial notice is denied. Other superior court decisions have no evidentiary basis; they are not binding on this court and are thus irrelevant. In her Complaint, Plaintiff alleges that on 11/21/21 when she was a passenger in Defendants' motor vehicle, they caused a collision on the 5 Freeway in Mission Viejo, resulting in her

injuries. Plaintiff's Uber ride at the time of the accident was requested by third-party Zackry Stark.

In moving to compel arbitration, Defendant references both Stark's Uber agreement as well as Plaintiff's own agreement she entered into via her Uber account. The agreements and subsequent updated terms of use contain the following arbitration clause:

> "(a) Agreement to Binding Arbitration Between You and Uber. …you and Uber agree that any dispute, claim or controversy in any way arising out of or relating to (i) these Terms and prior versions of these Terms, or the existence, breach, termination, enforcement, interpretation, scope, waiver, or validity thereof, (ii) your access to or use of the Services at any time, (iii) incidents or accidents resulting in personal injury that you allege occurred in connection with your use of the Services, whether the dispute, claim or controversy occurred or accrued before or after the date you agreed to the Terms, or (iv) your relationship with Uber, will be settled by binding arbitration between you and Uber, and not in a court of law. This Agreement survives after your relationship with Uber ends."

(Gaddis Decl., Exs. B, D [emphasis added].)

Further, the arbitration agreement states:

> "This Arbitration Agreement shall be binding upon, and shall include any claims brought by or against any third-parties, including but not limited to your spouses, heirs, third-party beneficiaries and assigns, where their underlying claims are in relation to your use of the Services. To the extent that any third-party beneficiary to this agreement brings claims against the Parties; those claims shall also be subject to this Arbitration Agreement."

(Ex. B, D to Gaddis Decl., section 2(a) [emphasis added].)

Additionally, the agreement expressly provides that "[t]he Federal Arbitration Act will govern its interpretation and enforcement and proceedings…." (Ex. C to Gaddis Decl., Section 2, Rules and Governing Law].)

The parties do not dispute that the FAA applies to this matter.

The FAA (1) establishes a national policy favoring arbitration where, as here, the parties contract for that mode of dispute resolution, and (2) mandates that courts must order arbitration when satisfied that the execution of an arbitration agreement is not at issue. (9 U.S.C. § 4; *see e.g. Dean Witter Reynolds, Inc. v. Byrd,* 470 U.S. 213, 218-19 (1985) (citing 9 U.S.C. §§ 3, 4) (determining that the FAA, "leaves no place for the exercise of discretion by a district court, but instead mandates that district courts *shall* direct the parties to proceed to arbitration on issues as to which an arbitration agreement has been signed.").)

Defendant suggests that because the FAA applies, the motion must be granted and the arbitrator shall decide whether or not the arbitration agreement applies to Plaintiff's claims. Plaintiff disputes this, arguing that this Court must first make that determination as to whether she is bound to arbitrate.

The Court need not resolve this particular dispute, as it finds that Plaintiff's claims are encompassed by the arbitration agreement.

Plaintiff argues in opposition that the arbitration clause is narrowly drafted, noting that "services" only refers to "The Uber Marketplace Platform and the Uber content or services described in this Section." (Gaddis Decl., Exs B, D, Section 3.)

Section 3 of the agreement states:

> Uber operates a multi-sided digital marketplace platform that is offered in a number of forms, including mobile and/or web based applications ("Applications"). Among other things, the Uber Marketplace Platform enables you to receive: (i) services rendered by Uber that facilitate your connection to independent third party providers, including drivers and restaurants ("Third Party Providers"), for the purchase of services or goods, such as transportation, logistics and/or delivery services from those Third Party Providers; and (ii) any related content or services, including payment processing and customer support. The Uber Marketplace Platform and the Uber content or services described in this Section are collectively referred to as "the Services". Unless otherwise agreed by Uber in a separate written agreement with you, the Services are made available solely for your personal, noncommercial use.

		(Gaddis Decl., Exs B, D, Section 3 [emphasis added].) Here, it was the transportation services rendered through the Uber Marketplace Platform that ultimately precipitated Plaintiff's accident and injuries. The clause is not so narrowly drafted to exclude her claims arising out of the accident. As discussed by the parties, however, it was not Plaintiff who enlisted Uber's services via her own Uber account. It was third-party Zackry Stark. The Court finds that because Plaintiff was a third-party beneficiary to Stark's agreement with Uber, the arbitration can be enforced against her. "[A] nonsignatory may enforce an arbitration agreement under a third-party beneficiary theory when the parties to the agreement agreed, upon the formation of their agreement, to confer the benefits thereof to the nonsignatory." (See *MS Dealer Service Corp. v. Franklin* (11th Cir. 1999) 177 F.3d 942, 947 (citations omitted); see also *Ronay Family Limited Partnership v. Tweed* (2013) 216 Cal.App.4th 830, 836 ["A third party beneficiary of an arbitration agreement may enforce it" under California Law].) "Whether the third party is an intended beneficiary or merely an incidental beneficiary involves construction of the intention of the parties, gathered from reading the contract as a whole in light of the circumstances under which it was entered." (*Cione v. Foresters Equity Services, Inc.* (1997) 58 Cal.App.4th 625, 636.) "It is not necessary that the beneficiary be named or identified as an individual." (*Ronay Family Limited Partnership v. Tweed, supra,* 216 Cal.App.4th at p. 839.) The salient inquiry is whether the third party "shows that he is a member of a class of persons for whose benefit it was made." (Id., citing *Garratt v. Baker* (1936) 5 Cal.2d 745, 748; accord, *Cargill, Inc. v. Souza* (2011) 201 Cal.App.4th 962, 967.) The agreement expressly states it is binding on third parties who bring claims in relation to the use of the services. (Gaddis Decl., Exhibit D section (2)(a)(5) – Application to Third Parties.) In addition, the facts also support Plaintiff's characterization as a third-party beneficiary. Her claims arise directly from her use of services provided through the Rider App that were requested via the Account Holder. In other words, the ride she received via Clark's use of his Uber account benefited Plaintiff.

		In addition, principles of estoppel apply to render the agreement enforceable against Plaintiff. A plaintiff may be equitably estopped from repudiating the arbitration clause contained in a contract where she or he relies on contract terms in a claim against a non-signatory defendant, and when the causes of action against the non-signatory are "intimately founded in and intertwined" with the underlying contract obligations" that are subject to the arbitration clause. (*Boucher v. Alliance Title Co, Inc.* (2005) 127 Cal.App.4th 262, 271); *Goldman v. KPMG, LLP* (2009) 173 Cal.App.4th 209, 217-218.) A non-signatory is estopped from refusing to comply with an arbitration clause when it receives a "direct benefit" from a contract containing an arbitration clause. (See *Boucher, supra*, 127 Cal.App.4th at 269.) Plaintiff's action arises because of her use of Uber's services which arose out of the use of Account Holder's Rider App and Account. She received a direct benefit and her claim for negligence is arguably intertwined with the services described in the agreement. Plaintiff cites to inapplicable medical negligence cases stating that a non-signatory to an arbitration agreement can only be bound under three limited situations: 1.) an agent can bind a principal (see, e.g., *Madden v. Kaiser Foundation Hospitals* (1976) 17 Cal.3d 699, 706; 2.) spouses can bind each other; (see, e.g., *Bolanos v. Khalatian* (1991) 231 Cal.App.3d 1586, 1591; and 3.) a parent can bind a minor child. These cases are not applicable here; rather there are numerous other cases holding that principles of equitable estoppel can bind a non-party to an arbitration agreement. Accordingly, based on the foregoing, the Court grants Defendant Uber Technologies, Inc.'s motion to compel arbitration of Plaintiff's claims. This matter is hereby stayed pursuant to Code Civ. Proc., § 1281.4. The Court sets a status conference on a date to be determined at the hearing. Defendant shall give notice.